IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

CA(CAA)NO.07/BB/18
Under Section 230 to 232 of Companies Act, 2013

IN THE MATTER OF SCHEME OF AMALGAMATION
IN THE MATTER OF
KEMEFS SPECIALITIES PRIVATE LIMITED
WITH
VMOKSHA TECHNOLOGIES PRIVATE LIMITED

Order delivered on: 26th February, 2018

Coram: Hon'ble Shri Ratakonda Murali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

For the Petitioner (s): Mr.Upendra C.Shukla, Practising Company Secretary
C-90, Snehadhara Dadabhai Cross Road
No.3, Vile Parle (East), Mumbai-400057

Per: Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Heard on:15.2.2018

VMOKSHA TECHNOLOGIES PRIVATE LIMITED
Plot No.2799 & 2800, 27th Main(Off ORR)
Sector 1, HSR Layout, Bengaluru-560102

ORDER

This Application is filed on behalf of the Applicant Company under Section 230 to 232 of Companies Act, 2013 read with Rule 3 Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, praying to dispense with convening of meeting of Equity Shareholders and Creditors of the Applicant Company/Transferee Company for considering the scheme of Amalgamation, where under Kemefs Specialities Private Limited (Transferor Company) is proposed to be merged with Vmoksha Technologies Private Limited (Applicant/Transferee Company). The Scheme of Amalgamation is shown as **Annexure-D**.

The averments made in the Company Application are briefly described hereunder:-

The Applicant/Transferee Company seeks an order to dispense with convening of meeting of Equity Shareholders and Creditors of the Applicant Company/Transferee Company for considering the scheme of Amalgamation where under Kemefs Specialities Private Limited (Transferor Company) is proposed to be merged with Vmoksha Technologies

Private Limited (Applicant/Transferee Company) in terms of Scheme of Amalgamation shown as **Annexure-D**.

Application is filed on behalf of the applicant company alleging that the Applicant Company/Transferee Company was incorporated on 11th September, 1998 under the name and style of Kemefs E-Solutions Private Limited. Subsequently on 8th June, 2001 the name of the company was changed to Vmoksha Technologies Private Limited. The Registered office of the Transferee Company is situated at Plot No.2799 and 2800, 27th Main (Off ORR), Sector 1, HSR layout, Bengaluru-560102.

The main objects of the Applicant Company/Transferee Company is to carry on development and marketing of computer software and marketing of other related products and services connected with the information technology industry, to carry on the business of manufacturing, processing, formulating, exporting, importing, buying, selling, dealing as agents, distributors of manufacturers, traders, dealers of all type of petrochemicals, chemicals and plastics. The copy of Memorandum and Articles of Association of the Transferee Company is shown as **Annexure-A.**

The latest authorised share capital of the Applicant Company/Transferee Company is Rs.12,00,00,000/- divided into 12,00,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferee Company is Rs.9,87,52,500/- divided into 9,87,525 Equity Shares of Rs.10/- each. The Audited balance sheet of the Applicant/Transferee as on 31st March, 2017 is shown as **Annexure-B1**.

It is further stated that, the Board of Directors of the Transferee Company have approved and adopted a Scheme of Amalgamation at their meeting held on 28th July, 2017 by virtue of which Kemefs Specialities Private Limited (Transferor Company) is proposed to be merged with Vmoksha Technologies Private Limited (Applicant/Transferee Company) subject to confirmation. Copy of the Board Resolution of Transferee Company dated 28th July, 2017 approving and adopting the Scheme of Amalgamation are shown as **Annexure-C**.

It is further averred in the scheme that the Board of Directors of the Transferor Company and Transferee Company are of the opinion that the amalgamation would result in following benefits:

1. The proposed scheme would strengthen and consolidate the position of the Transferor and Transferee Companies to develop and concentrate on the core competency.

2. Pursuant to the implementation of the scheme, the transferee Company will have a strong financial and operational structure and will be capable of resource mobilization and financial consolidation necessary to withstand the new competitive environment.

It is further stated that the M/s.Balu & Anand, Chartered Accountants after verification of the books of accounts, other records and documents of the Applicant Company/ Transferee Company has certified that there are 2 equity shareholders in the Applicant Company/ Transferee Company and filed by way of **memo dated 11th January, 2018.**

It is further stated that there are no Secured Creditors and no Unsecured Creditors other than loan received from Director Rs.30,00,000/- as on 31st December, 2017 in the Applicant Company/ Transferee Company as certified by the M/s.Balu & Anand, Chartered Accountants and the certificate of Chartered Accountant is filed along with **memo dated 11th January, 2018.**

It is further stated that the Director who has given loan to the Applicant/Transferee Company has given his consent by way of affidavit. The consent affidavit is filed along with **memo dated 11th January, 2018.**

We have seen the consent affidavits which are notarized by notary public in the State of New York filed by Two Equity shareholders of Applicant Company/Transferee Company i.e., (i)Chance World International BSC, Bahrain, holding 987,515 equity shares, constituting 99.99% of the paid-up capital,(ii)Mr.Rajeev Sawhney holding 10 equity shares, constituting 0.001% of the paid-up capital shown as **Annexure-E1 & E2**.

We have seen the consent affidavit filed by 1 Director from whom the Applicant/Transferee Company has received loan (i)Rajeev Sawhney and the consent affidavit is filed along with **memo dated 11th January, 2018**.

The Applicant Company is seeking an order to dispense with convening of meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors on the ground that, there are 2 Equity shareholders, no Secured Creditors and no Unsecured Creditors in the Applicant Company/Transferee Company and all the Equity shareholders of Applicant Company/Transferee Company have given their consent by way of affidavits for the proposed scheme of amalgamation.

The Applicant Company is seeking an order to dispense with the convening of meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Company for approving the scheme of amalgamation of Kemefs Specialities Private Limited (Transferor Company) with Vmoksha Technologies Private Limited (Applicant/Transferee Company) shown as **Annexure-D.**

In the result, the application is allowed and holding of meeting of the Equity Shareholders, Secured Creditors and Unsecured Creditors of Applicant Company/Transferee Company is dispensed with. In any eventuality when the Applicant Company approaches this Tribunal for seeking approval of the scheme it would be open for any person who is interested in the Scheme of Amalgamation to put forth their contentions before the Tribunal.

26/2/18

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

26/2/18

(RATAKONDA MURALI)
MEMBER, JUDICIAL

50

NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 26.02.2018.

PRESENT: 1. Hon'ble Member(J) **Shri Ratakonda Murali**
2. Hon'ble Member(T) **Dr. Ashok Kumar Mishra**

C.P. No. or C.A. No.	T.P. No.	Purpose	Section	Name of the Parties M/s. / Mr.
CA(CAA)No.07/BB / 2018	-	For consideration	230-232	M/s Vmoksha Technologies Pvt Ltd

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE

ORDER

Orders pronounced vide separate order.

Member (T) **Member (J)**